# GOVERNANCE DOCUMENT BUNDLE

## THE JOPETNAH FOUNDATION ( TJF )

**FINAL VERSION — APPROVED BY THE BOARD OF TRUSTEES**

Kampala, Republic of Uganda · 2026

*This bundle contains TJF's five core governance documents, reviewed and approved by the founding Board of Trustees. Each document may be amended in accordance with its own amendment procedure as the Foundation's needs evolve — approval as-is does not preclude future refinement.*

## Contents



## Governance Hierarchy

**Constitution → Board Charter → Conflict of Interest Policy → Whistleblower Policy → Safeguarding Policy**

*Where any two documents conflict, the document higher in this list prevails. The Constitution is the supreme governing instrument.*

Prepared for: Board of Trustees, founding partners, and institutional due-diligence review.


Contact: partnerships@jopetnahfoundation.org

# THE CONSTITUTION

OF

# THE JOPETNAH FOUNDATION

**( TJF )**

*Building whole communities, one life at a time.*

**FINAL VERSION — APPROVED BY THE BOARD OF TRUSTEES**

Kampala, Republic of Uganda · 2026

*This Constitution has been reviewed and approved by the founding team of The Jopetnah Foundation (TJF) and becomes binding upon execution by the Founding Trustees at Schedule 2. It may be amended from time to time in accordance with Article 16 as TJF's governance needs evolve.*

## Table of Contents

# Preamble

WHEREAS the founders of The Jopetnah Foundation (hereinafter "the Foundation") recognize that families in underserved communities face interconnected challenges of education, health, livelihood, and environmental insecurity that are best addressed through an integrated, locally-led approach;

AND WHEREAS the founders desire to establish a body corporate, not for private gain, dedicated to advancing education, health, economic opportunity, and environmental resilience in underserved communities;

NOW THEREFORE, the founding Trustees hereby adopt this Constitution to govern the Foundation's purpose, structure, and operations.

## Article 1: Name, Status and Office

**1.1** The name of the organization shall be "The Jopetnah Foundation" (hereinafter referred to as "the Foundation" or "TJF"), and it may be known and referred to by that name or abbreviation in all its dealings, property, and legal proceedings.

**1.2** The Foundation shall be registered under the laws of the Republic of Uganda as a company limited by guarantee and not having share capital, and/or as a non-governmental organization under the applicable NGO legislation, as advised by legal counsel, and shall not distribute profit to its members, Trustees, or officers.

**1.3** The Foundation's principal office shall be situated in Kampala, Uganda, at such physical address as the Board of Trustees may from time to time determine, with authority to establish branch offices elsewhere in Uganda or internationally as its work requires.

**1.4** The Foundation is established for an indefinite duration unless dissolved in accordance with Article 17 of this Constitution.

# Article 2: Interpretation

In this Constitution, unless the context otherwise requires:

**(a)** "Board" or "Board of Trustees" means the governing body of the Foundation established under Article 7;

**(b)** "Constitution" means this Constitution of the Foundation as amended from time to time;

**(c)** "Executive Director" means the chief executive officer of the Foundation appointed under Article 9;

**(d)** "Financial Year" means the accounting period of the Foundation as determined under Article 12;

**(e)** "Founding Trustee" means a person named as such in Schedule 1 to this Constitution;

**(f)** "Member" means a person admitted to membership of the Foundation under Article 5, where a membership structure is adopted;

**(g)** "Pillar" means one of the Foundation's four programmatic focus areas described in Article 3;

**(h)** words importing the singular include the plural and vice versa, and words importing one gender include all genders.

# Article 3: Vision, Mission, Values and Objects

## 3.1 Vision

A generation of communities that are educated, healthy, economically self-reliant, and environmentally sustainable.

## 3.2 Mission

To advance education, health, economic opportunity, and environmental resilience in underserved communities through integrated, locally-led programs.

## 3.3 Core Values

The Foundation shall be guided by the values of Integrity, Community Ownership, Transparency, Sustainability, and Inclusion.

## 3.4 Objects

The objects for which the Foundation is established are:

**(a)** to advance the education of disadvantaged children and youth through scholarships, mentorship, digital and vocational skills training, and community literacy programs;

**(b)** to promote the health and wellbeing of underserved communities through community health education, mobile health outreach, and mental health and nutrition programs;

**(c)** to alleviate poverty and promote sustainable livelihoods through micro-grants, vocational and enterprise training, and community savings initiatives;

**(d)** to promote environmental sustainability and community resilience through conservation, water and sanitation access, and climate-smart livelihood initiatives;

**(e)** to receive and administer donations, grants, and other funds in furtherance of the foregoing objects; and

**(f)** to do all such other lawful things as are incidental or conducive to the attainment of the above objects.

**3.5** The Foundation shall carry out its objects without regard to race, ethnicity, religion, gender, disability, political affiliation, or any other status, and shall not be affiliated with or act in furtherance of any political party.

# Article 4: Powers

In furtherance of, and restricted to, the objects set out in Article 3, the Foundation shall have power to:

**(a)** solicit, receive, and administer donations, grants, sponsorships, and other contributions from individuals, corporations, governments, and institutions;

**(b)** acquire, hold, manage, and dispose of movable and immovable property necessary for its objects;

**(c)** open and operate bank accounts and invest surplus funds prudently, subject to Article 12;

**(d)** employ staff, engage consultants, and enter into contracts necessary for its operations;

**(e)** establish branches, program offices, subsidiaries, or affiliated entities, in Uganda or elsewhere, subject to Board approval;

**(f)** collaborate, partner, or affiliate with other organizations, governments, or institutions sharing similar objects;

**(g)** borrow money and give security over its assets, subject to a resolution of the Board approved by not less than two-thirds of Trustees present and voting; and

**(h)** do all other lawful acts and things as are incidental or conducive to the attainment of its objects.

**4.2** No part of the income, property, or assets of the Foundation shall be distributed or paid, directly or indirectly, to any Trustee, Member, or officer by way of profit, dividend, or bonus. This clause does not prohibit the payment of reasonable remuneration to staff, consultants, or service providers, or reimbursement of reasonable expenses to Trustees, for services actually rendered to the Foundation.

# Article 5: Membership

**5.1** The Foundation may, at the discretion of the Board, adopt a formal membership structure in addition to its Board of Trustees. Where adopted, membership shall consist of the following categories: Founding Members, Ordinary Members, and Honorary Members.

**5.2** Founding Members are those persons who participated in the establishment of the Foundation and are named in Schedule 1.

**5.3** Ordinary Membership shall be open to individuals and institutions who subscribe to the objects of the Foundation and are admitted by resolution of the Board, subject to such criteria and subscription (if any) as the Board may prescribe.

**5.4** Honorary Membership may be conferred by the Board on individuals who have rendered distinguished service to the Foundation. Honorary Members shall not have voting rights unless otherwise resolved by the Board.

**5.5** Membership shall terminate upon: (a) voluntary resignation in writing; (b) death or dissolution, in the case of an institutional Member; (c) expulsion by a two-thirds resolution of the Board on grounds of conduct prejudicial to the Foundation, following written notice and an opportunity to be heard; or (d) non-payment of prescribed subscription, if any, after due notice.

**5.6** The Foundation shall maintain a Register of Members recording the name, category, and date of admission of each Member.

## Article 6: Organs of the Foundation

The organs of the Foundation shall be:

**(a)** the Board of Trustees, being the supreme governing organ of the Foundation;

**(b)** the Executive Office, comprising the Executive Director and Secretariat staff;

**(c)** the Advisory Council; and

**(d)** such Committees as the Board may from time to time establish.

## Article 7: The Board of Trustees

**7.1** Composition. The Board shall consist of not fewer than seven (7) and not more than nine (9) Trustees, who shall collectively possess relevant skills in governance, finance, law, program management, and community development.

**7.2** Qualifications. A person is eligible to serve as a Trustee if they are of sound mind, at least twenty-one (21) years of age, of good standing, and have not been convicted of an offense involving fraud or dishonesty.

**7.3** Appointment and Term. Founding Trustees shall serve from adoption of this Constitution. Subsequent Trustees shall be appointed by resolution of the Board, on the recommendation of the Governance Committee where one exists, for a term of three (3) years, renewable for not more than two (2) further consecutive terms.

**7.4** Officers of the Board. The Board shall elect from among its members a Chairperson, a Vice-Chairperson, a Treasurer, and a Secretary, each to serve for the duration of their term as Trustee unless earlier removed by the Board.

**7.5** Powers and Functions. The Board shall be responsible for: (a) setting the strategic direction of the Foundation; (b) approving annual budgets, work plans, and audited financial statements; (c) appointing and overseeing the Executive Director; (d) approving major partnerships, borrowing, and disposal of significant assets; (e) ensuring compliance with this Constitution and applicable law; and (f) safeguarding the reputation, assets, and beneficiaries of the Foundation.

**7.6** Removal and Resignation. A Trustee may resign by written notice to the Chairperson. A Trustee may be removed by a resolution passed by not less than two-thirds of the remaining Trustees, on grounds including but not limited to: incapacity, prolonged absence from meetings without reasonable cause (three consecutive meetings), conduct prejudicial to the Foundation, or conflict of interest not properly disclosed.

**7.7** Casual Vacancies. The Board may, by resolution, appoint a qualified person to fill a casual vacancy for the unexpired portion of the term.

## Article 8: Meetings of the Board

**8.1** The Board shall meet in ordinary session not less than four (4) times per Financial Year.

**8.2** Not less than seven (7) days' written notice, together with an agenda, shall be given for ordinary meetings; three (3) days' notice shall suffice for meetings convened as urgent by the Chairperson.

**8.3** A quorum for any Board meeting shall be a simple majority of Trustees then in office.

**8.4** Decisions shall be by simple majority of Trustees present and voting, save where this Constitution requires a special majority. The Chairperson shall have an original vote and, in the event of a tie, a casting vote.

**8.5** Minutes of every meeting shall be recorded by the Secretary and confirmed at the following meeting.

**8.6** Meetings may be held in person, by videoconference, or by other electronic means, and resolutions may be passed in writing signed (including by electronic signature) by all Trustees without a meeting being held.

# Article 9: The Executive Director and Secretariat

**9.1** The Board shall appoint an Executive Director who shall be the chief executive officer of the Foundation, responsible for its day-to-day management, implementation of Board decisions, and fundraising and partnership relationships.

**9.2** The Executive Director shall attend Board meetings in an ex-officio, non-voting capacity unless the Board resolves otherwise, and shall submit periodic reports to the Board.

**9.3** The Executive Director shall, subject to Board-approved structure and budget, appoint Program Directors for each Pillar and such other staff as the Foundation's operations require.

**9.4** The Board may, by written resolution, delegate to the Executive Director such powers as it considers appropriate for the efficient administration of the Foundation, provided that the powers reserved to the Board under Article 7.5 may not be delegated.

## Article 10: The Advisory Council

**10.1** The Board may constitute an Advisory Council comprising persons of standing in the community, the diaspora, and relevant sectors, to provide strategic advice and support the Foundation's credibility and resource mobilization.

**10.2** The Advisory Council shall be advisory only and shall have no governance or voting authority over the affairs of the Foundation.

**10.3** The Advisory Council shall meet at least twice per Financial Year, or as the Board may determine.

# Article 11: Committees

**11.1** The Board may establish standing or ad hoc committees, including but not limited to a Finance and Audit Committee, a Programs Committee, a Governance and Nominations Committee, and a Resource Mobilization Committee.

**11.2** Each committee shall operate under written terms of reference approved by the Board and shall report to the Board at each ordinary meeting.

**11.3** Committees may include persons who are not Trustees, provided the committee chairperson is a Trustee unless the Board resolves otherwise.

# Article 12: Finances and Property

**12.1** Sources of Funds. The funds of the Foundation shall consist of donations, grants, corporate sponsorships, income from lawful activities consistent with its objects, and investment income.

**12.2** Financial Year. The Financial Year of the Foundation shall run from 1 January to 31 December each year, or such other period as the Board may resolve, subject to applicable law.

**12.3** Bank Accounts. The Foundation shall maintain bank account(s) in its name, operated by not fewer than two authorized signatories designated by the Board, at least one of whom shall be the Treasurer or Executive Director.

**12.4** Books of Account. The Board shall ensure proper books of account are kept, recording all income, expenditure, assets, and liabilities of the Foundation.

**12.5** Audit. The accounts of the Foundation shall be audited annually by an independent qualified auditor appointed by the Board, and the audited financial statements shall be presented to the Board and, where applicable, to the Annual General Meeting.

**12.6** Investment. Surplus funds not immediately required may be invested by the Board in a prudent manner consistent with the Foundation's risk policy, and not for speculative purposes.

**12.7** Restriction. No funds or property of the Foundation shall be applied for any purpose other than the objects set out in Article 3, save for reasonable administrative costs and remuneration as permitted under Article 4.2.

## Article 13: Annual General Meeting

**13.1** Where a membership structure is in effect under Article 5, an Annual General Meeting ("AGM") of Members shall be held not later than six (6) months after the end of each Financial Year.

**13.2** The business of the AGM shall include: receiving the annual report and audited financial statements; ratifying the appointment of auditors; and any other business of which notice has been given.

**13.3** Not less than fourteen (14) days' written notice of the AGM shall be given to Members. A quorum shall be one-third of Members entitled to vote, or as otherwise prescribed by the Board.

**13.4** An Extraordinary General Meeting may be convened by the Board, or on the written request of not less than one-third of Members, to transact urgent business.

## Article 14: Conflict of Interest

**14.1** A Trustee, officer, or staff member with a direct or indirect personal or financial interest in any matter before the Board shall disclose that interest as soon as it becomes known and shall not participate in the discussion or vote on that matter, save to provide information if requested.

**14.2** The Foundation shall maintain a Register of Interests recording all disclosures made under this Article.

**14.3** Failure to disclose a material conflict of interest shall be a ground for removal under Article 7.6.

## Article 15: Code of Conduct and Safeguarding

**15.1** All Trustees, staff, volunteers, and representatives of the Foundation shall act with honesty, integrity, and professionalism, and shall avoid any conduct that may bring the Foundation into disrepute.

**15.2** The Foundation shall maintain a zero-tolerance policy toward corruption, fraud, bribery, and misappropriation of funds, and shall adopt an anti-fraud and anti-corruption policy approved by the Board.

**15.3** The Foundation shall adopt and enforce a safeguarding policy for the protection of children and vulnerable persons in all its programs, consistent with applicable Ugandan law and international best practice.

**15.4** The Foundation shall adopt a whistleblower policy protecting any person who, in good faith, reports suspected misconduct from retaliation.

## Article 16: Amendment of the Constitution

**16.1** This Constitution may be amended by a resolution passed by not less than two-thirds of the Trustees present and voting at a Board meeting convened for that purpose, of which not less than fourteen (14) days' written notice specifying the proposed amendment has been given.

**16.2** No amendment shall be made to Article 3 (Objects), Article 4.2 (Non-Distribution), or Article 17 (Dissolution) that would be inconsistent with the Foundation's non-profit character, save with the prior approval of the Board by unanimous resolution and, where required, the relevant regulatory authority.

## Article 17: Dissolution

**17.1** The Foundation may be dissolved by a resolution passed by not less than two-thirds of the Trustees present and voting at a meeting convened specifically for that purpose, of which not less than thirty (30) days' written notice has been given.

**17.2** Upon dissolution, the Board shall settle all debts and liabilities of the Foundation, and any remaining assets shall not be distributed to any Trustee, Member, or officer, but shall be transferred to one or more other organizations in Uganda with objects similar to those of the Foundation, as the Board shall determine, or failing such determination, as a court of competent jurisdiction may direct.

## Article 18: Dispute Resolution

**18.1** Any dispute arising among Trustees, Members, or officers concerning the affairs of the Foundation shall in the first instance be referred to the Board for internal resolution.

**18.2** If unresolved within sixty (60) days, the dispute shall be referred to mediation, and failing settlement, to arbitration in Kampala, Uganda, in accordance with the Arbitration and Conciliation Act of Uganda, before resort to the courts.

## Article 19: Indemnification and Liability

**19.1** No Trustee, officer, or staff member shall be personally liable for any debt, loss, or obligation of the Foundation incurred while acting in good faith and within the scope of their authority.

**19.2** The Foundation may, subject to Board approval and applicable law, indemnify its Trustees and officers against liabilities properly incurred in the good-faith execution of their duties, and may procure appropriate insurance for this purpose.

## Article 20: Miscellaneous

**20.1** Common Seal. The Foundation may adopt a common seal, which shall be kept in the custody of the Executive Director and affixed to documents only pursuant to a resolution of the Board.

**20.2** Language. This Constitution is written in English, which shall be the official working language of the Foundation.

**20.3** Governing Law. This Constitution shall be governed by and construed in accordance with the laws of the Republic of Uganda.

**20.4** Severability. If any provision of this Constitution is held invalid or unenforceable, the remaining provisions shall continue in full force and effect.

**20.5** Effective Date. This Constitution shall take effect on the date of its adoption by the Founding Trustees, as recorded in the Certificate of Adoption at Schedule 2.

## Schedule 1: Founding Trustees

The following persons are recorded as the Founding Trustees of The Jopetnah Foundation as at the date of adoption of this Constitution:

| Name | Position on Board | Signature |
|---|---|---|
| | | |
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## Schedule 2: Certificate of Adoption

WE, THE UNDERSIGNED, being the Founding Trustees of The Jopetnah Foundation, hereby adopt this Constitution as the governing instrument of the Foundation on this ____ day of _______________, 20____, at Kampala, Uganda.

**Signed by the Founding Trustees:**

1. Name: ___________________________________ Signature: ________________________ Date: _______________

2. Name: ___________________________________ Signature: ________________________ Date: _______________

3. Name: ___________________________________ Signature: ________________________ Date: _______________

4. Name: ___________________________________ Signature: ________________________ Date: _______________

5. Name: ___________________________________ Signature: ________________________ Date: _______________

6. Name: ___________________________________ Signature: ________________________ Date: _______________

7. Name: ___________________________________ Signature: ________________________ Date: _______________

**Witnessed by:**

Name: ___________________________________ Capacity (e.g. Advocate): ________________________

Signature: ___________________________________ Date: _______________

# BOARD CHARTER

OF

# THE JOPETNAH FOUNDATION

**( TJF )**

*Governing the operations of the Board of Trustees, adopted pursuant to Article 7 of the Constitution*

**FINAL VERSION — APPROVED BY THE BOARD OF TRUSTEES**

Kampala, Republic of Uganda · 2026

*This Charter operationalizes Articles 6–11 of TJF's Constitution and has been reviewed and approved by the Board. It sits below the Constitution in TJF's governance hierarchy: where the two conflict, the Constitution prevails. It may be amended by simple Board majority as TJF's governance needs evolve, per Article 13.*

# Table of Contents

## 1. Purpose and Status of this Charter

**1.1** This Charter sets out the operating rules, roles, and expectations of the Board of Trustees of The Jopetnah Foundation ("the Foundation" or "TJF"), supplementing the Constitution with practical governance detail.

**1.2** This Charter may be adopted and amended by a simple majority of the Board, and does not require the special majorities prescribed for amendment of the Constitution itself.

**1.3** In the event of any inconsistency between this Charter and the Constitution, the Constitution shall prevail.

## 2. Role and Fiduciary Duties of the Board

Trustees owe the Foundation the following fiduciary duties, which this Charter expects every Trustee to uphold:

**(a)** Duty of Care — to act with the care, diligence, and skill that a reasonably prudent person would exercise in comparable circumstances, including preparing for and attending meetings and exercising independent judgment;

**(b)** Duty of Loyalty — to act in the best interests of the Foundation and its beneficiaries, ahead of personal or third-party interests, and to disclose conflicts of interest in accordance with the Foundation's Conflict of Interest Policy;

**(c)** Duty of Obedience — to ensure the Foundation acts in accordance with its Constitution, this Charter, its Objects, and applicable law.

**2.2** The Board governs; it does not manage. The Board sets strategy, policy, and risk appetite, and holds the Executive Director accountable for management and implementation, in accordance with Article 9 of the Constitution.

## 3. Composition and Skills

**3.1** The Board shall maintain a skills matrix covering, at minimum: governance/legal, financial management, program/sector expertise (education, health, livelihoods, environment), fundraising and donor relations, and risk/audit.

**3.2** The Governance and Nominations Committee (or the Board, where no such committee exists) shall review the skills matrix annually against the Board's actual composition and recommend recruitment priorities for upcoming vacancies.

**3.3** The Board shall have regard to diversity of gender, geography, age, and lived experience of the communities the Foundation serves when recommending new Trustees.

# 4. Roles of Board Officers

## 4.1 Chairperson

Leads the Board, sets meeting agendas in consultation with the Executive Director, chairs meetings, acts as the principal spokesperson of the Board, and leads the annual performance evaluation of the Executive Director.

## 4.2 Vice-Chairperson

Deputizes for the Chairperson when unavailable, and supports the Chairperson in Board leadership duties as agreed between them.

## 4.3 Treasurer

Oversees the Foundation's financial management on behalf of the Board, chairs or liaises closely with the Finance and Audit Committee, reviews management accounts before circulation to the Board, and leads Board scrutiny of the annual budget and audited financial statements.

## 4.4 Secretary

Ensures proper notice of meetings, prepares and circulates agendas and board papers, records and circulates minutes, and maintains the Foundation's statutory registers (including the Register of Members, Register of Interests, and minute books).

## 5. Trustee Onboarding and Induction

**5.1** Every newly appointed Trustee shall, within thirty (30) days of appointment, receive: a copy of the Constitution, this Charter, the Conflict of Interest Policy, the most recent audited financial statements, and a briefing from the Executive Director on current programs and strategy.

**5.2** Every new Trustee shall complete and sign an initial Conflict of Interest Declaration (Schedule A to the Conflict of Interest Policy) before participating in their first Board vote.

## 6. Meetings — Operating Detail

**6.1** Ordinary Board meetings shall be scheduled at least one year in advance to maximize attendance, and shall in any event satisfy the minimum frequency prescribed in Article 8.1 of the Constitution.

**6.2** Board papers, including the agenda, prior minutes, and any papers requiring a decision, shall be circulated not less than five (5) working days before each meeting, save in cases of urgency.

**6.3** Standing agenda items for ordinary meetings shall include: declarations of interest, minutes and matters arising, Executive Director's report, financial update, program/pillar updates, committee reports, and any resolutions for decision.

**6.4** Trustees are expected to attend not less than seventy-five percent (75%) of Board meetings in any Financial Year; attendance shall be recorded in the minutes and reviewed annually.

**6.5** Draft minutes shall be circulated to Trustees within ten (10) working days of a meeting, for confirmation at the next meeting.

## 7. Delegation of Authority

The following table sets out indicative decision-making thresholds. The Board shall review and, if necessary, update these thresholds at least annually.

| Decision | Authority | Notes |
|---|---|---|
| Operating expenditure within approved budget line | Executive Director | Report to Board quarterly |
| Single expenditure item exceeding 5% of annual budget | Board approval required | Prior written Board resolution |
| New program or pillar-level initiative | Board approval required | Via Programs Committee recommendation |
| Staff hiring below senior management level | Executive Director | Within approved staffing budget |
| Senior management hiring/termination | Board approval required | Via Governance Committee |
| Borrowing or granting security over assets | Board approval (2/3 majority) | Per Constitution Art. 4.1(g) |
| Entering major partnership/MOU | Board approval required | Reviewed by Executive Director first |
| Opening/closing bank accounts | Board approval required | Signatories per Constitution Art. 12.3 |

## 8. Committees

**8.1** The Board maintains the following standing committees, each governed by its own written terms of reference:

> **(a)** Finance and Audit Committee — oversight of financial management, risk, and the annual audit;
>
> **(b)** Programs Committee — oversight of program design, quality, and impact measurement across the four Pillars;
>
> **(c)** Governance and Nominations Committee — Board composition, Trustee recruitment, induction, and performance evaluation;
>
> **(d)** Resource Mobilization Committee — oversight of the fundraising strategy, grants calendar, and donor relationships.

**8.2** Each committee shall have a minimum of three (3) members, a majority of whom shall be Trustees, and shall report to the Board at every ordinary meeting.

## 9. Board Performance and Effectiveness

**9.1** The Board shall conduct an annual self-assessment of its own effectiveness, covering meeting quality, committee functioning, strategic oversight, and individual Trustee contribution.

**9.2** The Chairperson shall conduct an annual one-on-one review with each Trustee, and the Vice-Chairperson shall conduct the equivalent review with the Chairperson.

**9.3** The Governance and Nominations Committee shall use the results of this review to inform recommendations on Board renewal and committee composition.

## 10. Trustee Remuneration and Expenses

**10.1** Trustees serve in a voluntary capacity and shall not receive remuneration for service on the Board, consistent with Article 4.2 of the Constitution.

**10.2** Trustees may be reimbursed for reasonable, pre-approved, and receipted expenses (such as travel) properly incurred in the course of Foundation business.

## 11. Confidentiality

**11.1** Trustees shall treat as confidential all non-public information received in their capacity as Trustee, including beneficiary information, personnel matters, and commercially sensitive partner information, and shall not disclose such information without Board authorization.

## 12. Relationship with the Executive Director

**12.1** The Chairperson shall be the principal point of contact between the Board and the Executive Director on governance matters, without displacing the Executive Director's authority to manage day-to-day operations.

**12.2** The Board shall conduct a formal annual performance review of the Executive Director, led by the Chairperson with input from all Trustees.

**12.3** Individual Trustees shall not give instructions to Foundation staff other than the Executive Director, save as authorized by the Board or in the ordinary course of committee work.

## 13. Amendment of this Charter

**13.1** This Charter may be amended by a simple majority of Trustees present and voting at any Board meeting, provided the proposed amendment was circulated with the meeting notice.

**13.2** The Governance and Nominations Committee shall review this Charter at least once every two years and recommend updates to the Board.

## Adoption

This Board Charter was reviewed and adopted by resolution of the Board of Trustees of The Jopetnah Foundation on the date recorded below.

Chairperson signature: ___________________________________ Date: _______________

Secretary signature: ___________________________________ Date: _______________

# CONFLICT OF INTEREST POLICY

OF

# THE JOPETNAH FOUNDATION

**( TJF )**

*Adopted pursuant to Article 14 of the Constitution — to be signed individually by every Trustee, officer, and senior staff member*

**FINAL VERSION — APPROVED BY THE BOARD OF TRUSTEES**

Kampala, Republic of Uganda · 2026

*This policy operationalizes Article 14 of TJF's Constitution and has been reviewed and approved by the Board. It may be amended as TJF's governance needs evolve, particularly as the Related-Party Transactions provisions are tested in practice.*

# Table of Contents

## 1. Purpose

This Policy protects the integrity of decision-making at The Jopetnah Foundation ("the Foundation" or "TJF") by ensuring that Trustees, officers, and staff identify, disclose, and appropriately manage any interest that could conflict, or appear to conflict, with the interests of the Foundation and the communities it serves.

## 2. Application

This Policy applies to:

**(a)** every Trustee of the Foundation;

**(b)** the Executive Director and all Program Directors;

**(c)** members of any Board committee, whether or not they are Trustees; and

**(d)** any other staff member or volunteer designated by the Board as subject to this Policy,

(each an "Interested Person" for the purposes of this Policy).

## 3. Definitions

**(a)** "Conflict of Interest" means any situation in which an Interested Person's personal, financial, business, or family interests could reasonably be seen to compete or interfere with their duty to act in the best interests of the Foundation;

**(b)** "Financial Interest" includes any direct or indirect ownership, investment, compensation arrangement, or other financial relationship with a person or entity doing or seeking to do business with, or in competition with, the Foundation;

**(c)** "Family Member" includes a spouse or partner, parent, child, sibling, and any other relative or person in a comparable close personal relationship with an Interested Person;

**(d)** "Related-Party Transaction" means any transaction, contract, grant, or arrangement between the Foundation and an Interested Person, a Family Member of an Interested Person, or an entity in which either has a material interest.

## 4. Duty to Disclose

**4.1** Every Interested Person shall disclose, in writing, any actual, potential, or perceived Conflict of Interest as soon as they become aware of it, and in any event before any related discussion or decision takes place.

**4.2** Disclosure shall be made to the Chairperson of the Board (or, where the Chairperson is the conflicted party, to the Vice-Chairperson) and shall be recorded in the Register of Interests.

**4.3** Every Interested Person shall additionally complete the Annual Conflict of Interest Declaration at Schedule A, whether or not they have an interest to declare, upon appointment and thereafter at least once every Financial Year.

## 5. Procedure for Addressing Conflicts

**5.1** Upon disclosure, the Board (excluding the Interested Person) shall determine whether a Conflict of Interest exists and, if so, how it should be managed.

**5.2** An Interested Person with a disclosed Conflict of Interest shall: (a) not be counted toward the quorum for the relevant agenda item; (b) withdraw from the discussion save to answer questions if invited; and (c) abstain from voting on the matter.

**5.3** The minutes of the relevant meeting shall record: the nature of the interest disclosed, that the Interested Person withdrew, and the outcome of the Board's decision.

**5.4** Where a Conflict of Interest is identified outside a meeting (for example, in relation to a staff decision), the matter shall be escalated to the Executive Director or, where the Executive Director is conflicted, to the Chairperson.

# 6. Register of Interests

**6.1** The Secretary shall maintain a Register of Interests recording all disclosures made under this Policy, including the Annual Declarations at Schedule A.

**6.2** The Register of Interests shall be reviewed by the Board, or its Governance and Nominations Committee, at least once per Financial Year, and shall be made available to the Foundation's auditors on request.

# 7. Related-Party Transactions

**7.1** Any proposed Related-Party Transaction shall be disclosed to the Board in advance and shall require approval by a majority of the disinterested Trustees, following a determination that the transaction is on terms no less favorable to the Foundation than would be available from an unrelated third party.

**7.2** All Related-Party Transactions approved under this Article shall be disclosed in the Foundation's annual financial statements or accompanying notes, consistent with applicable accounting standards.

## 8. Gifts and Hospitality

**8.1** Interested Persons may not solicit gifts, favors, or hospitality from any person or organization doing or seeking to do business with the Foundation.

**8.2** Modest, occasional gifts or hospitality consistent with normal business courtesy may be accepted, but shall be disclosed to the Chairperson where their value exceeds an amount to be set by the Board from time to time, and recorded in a Gifts and Hospitality Register.

## 9. Outside Activities and Other Directorships

**9.1** Trustees and senior staff shall disclose other board memberships, directorships, or advisory roles, particularly with organizations that operate in the same sectors as, or receive funding from or compete with, the Foundation.

**9.2** The Board may, at its discretion, determine that a particular outside role is incompatible with continued service as a Trustee or senior staff member, and shall communicate any such determination to the individual concerned with reasons.

## 10. Confidentiality of Disclosures

**10.1** Disclosures made under this Policy shall be treated as confidential and shared only with those who need to know in order to manage the conflict appropriately, save where disclosure is required by law or to the Foundation's auditors.

## 11. Sanctions for Non-Disclosure

**11.1** Failure to disclose a material Conflict of Interest, or participation in a decision despite a disclosed conflict without Board authorization, shall be treated as a serious breach of duty and may constitute grounds for removal under Article 7.6 of the Constitution, in the case of a Trustee, or disciplinary action, in the case of staff.

**11.2** Any transaction entered into in breach of this Policy may be voided or ratified by the Board, at the Board's discretion, following independent review.

## 12. Annual Declaration Requirement

**12.1** Every person subject to this Policy shall complete the Annual Conflict of Interest Declaration at Schedule A within thirty (30) days of appointment and thereafter within thirty (30) days of the start of each Financial Year.

**12.2** Completed declarations, including nil declarations, shall be retained in the Register of Interests for not less than seven (7) years.

## 13. Review of this Policy

**13.1** This Policy shall be reviewed by the Board at least once every two years, or sooner if required by a material change in law or the Foundation's operating context.

## Schedule A: Annual Conflict of Interest Declaration

To be completed by every Trustee, officer, committee member, and designated staff member upon appointment and at the start of each Financial Year thereafter.

Full Name: ________________________________

Position / Role at the Foundation: ________________________________

Financial Year to which this declaration relates: ________________________________

**Please tick as applicable and provide details below:**

☐ I have NO actual, potential, or perceived Conflict of Interest to declare.

☐ I declare the following interest(s):

| Nature of Interest | Details (entity, relationship, nature of interest) |
|---|---|
| | |
| | |
| | |
| | |

*I confirm that the information provided above is true and complete to the best of my knowledge, and I undertake to disclose any new Conflict of Interest as soon as it arises, in accordance with this Policy.*

Signature: ________________________________

Date: ______________

# WHISTLEBLOWER POLICY

OF

# THE JOPETNAH FOUNDATION

**( TJF )**

*Adopted pursuant to Article 15.4 of the Constitution*

**FINAL VERSION — APPROVED BY THE BOARD OF TRUSTEES**

Kampala, Republic of Uganda · 2026

*This policy operationalizes Article 15.4 of TJF's Constitution and has been reviewed and approved by the Board. It may be amended as TJF's governance needs evolve, particularly as statutory reporting obligations under Ugandan law develop.*

# Table of Contents

## 1. Purpose

This Policy provides Trustees, staff, volunteers, and partners of The Jopetnah Foundation ("the Foundation" or "TJF") with a safe, confidential way to raise genuine concerns about wrongdoing, and protects anyone who raises such a concern in good faith from retaliation.

## 2. Application

This Policy applies to all Trustees, officers, staff, volunteers, interns, contractors, and beneficiaries of the Foundation, and to any partner organization implementing Foundation-funded activities.

## 3. Definitions

**(a)** "Whistleblower" means any person covered by this Policy who makes a Protected Disclosure;

**(b)** "Protected Disclosure" means a good-faith report of suspected wrongdoing falling within Article 4, made in accordance with this Policy;

**(c)** "Retaliation" means any adverse action taken against a Whistleblower because they made a Protected Disclosure, including dismissal, demotion, harassment, exclusion, or threats.

## 4. What Can Be Reported

This Policy covers good-faith concerns about:

**(a)** fraud, theft, or misappropriation of Foundation funds or property;

**(b)** corruption or bribery;

**(c)** safeguarding breaches involving children or vulnerable persons (which shall also be reported under the Foundation's Safeguarding Policy);

**(d)** conflicts of interest not disclosed in accordance with the Conflict of Interest Policy;

**(e)** serious breaches of the Constitution, Board Charter, or other Foundation policy;

**(f)** danger to health or safety, or damage to the environment;

**(g)** criminal conduct or violation of any legal or regulatory obligation; and

**(h)** deliberate concealment of any of the above.

**4.2** This Policy is not intended for routine workplace grievances (such as personal disputes between colleagues), which should be raised through the Foundation's ordinary staff grievance procedures.

## 5. How to Report

**5.1** A concern may be raised, in order of preference, with: (a) the person's line manager; (b) the Executive Director; (c) the Chairperson of the Board or the Finance and Audit Committee, where the concern involves the Executive Director or senior management; or (d) through any dedicated confidential/anonymous reporting channel the Board may establish.

**5.2** Reports may be made verbally or in writing, and may use the Whistleblowing Report Form at Schedule A, though use of the form is not mandatory.

**5.3** Where the concern involves a Trustee, the report shall be made directly to the Chairperson or, if the Chairperson is implicated, to the Vice-Chairperson.

## 6. Protection Against Retaliation

**6.1** The Foundation shall not tolerate Retaliation against any person who makes a Protected Disclosure in good faith, whether or not the concern is ultimately substantiated.

**6.2** Any person found to have retaliated against a Whistleblower shall be subject to disciplinary action, up to and including termination or removal from office.

**6.3** A Whistleblower who believes they have experienced Retaliation may report this directly to the Chairperson, who shall ensure it is investigated independently of the original concern.

## 7. Confidentiality

**7.1** The identity of a Whistleblower shall be kept confidential to the fullest extent possible, consistent with conducting a fair and thorough investigation, and shall not be disclosed without the Whistleblower's consent unless required by law.

**7.2** Anonymous reports will be considered and investigated so far as the information provided allows, though the Foundation's ability to investigate or provide feedback may be limited where a report is anonymous.

## 8. False and Malicious Reports

**8.1** This Policy protects good-faith reports, even where the concern turns out to be mistaken. It does not protect a person who knowingly makes a false or malicious report, which may itself be treated as misconduct.

## 9. Investigation Procedure

**9.1** Upon receipt of a report, the recipient shall acknowledge it promptly and refer it to the Chairperson (or Vice-Chairperson, where conflicted) if not already so directed.

**9.2** The Board shall determine who is best placed to investigate, which may include an independent Trustee, an external investigator, or referral to the Finance and Audit Committee, having regard to the nature and seniority of those involved.

**9.3** Investigations shall be conducted promptly, fairly, and proportionately, with due process afforded to any person against whom an allegation is made.

**9.4** Where a report raises a safeguarding concern involving a child or vulnerable person, it shall be handled in accordance with the Foundation's Safeguarding Policy in parallel with this Policy, and safeguarding procedures shall take precedence on matters of immediate safety.

## 10. Reporting Outcomes

**10.1** A summary of whistleblowing reports received and their outcomes (with identifying details redacted as appropriate) shall be reported to the Board, or its Finance and Audit Committee, at least annually.

**10.2** The Whistleblower shall, so far as confidentiality and legal constraints allow, be informed of the outcome of any investigation into their report.

## 11. External Reporting

**11.1** Nothing in this Policy prevents a person from reporting suspected criminal conduct directly to the Uganda Police Force or other competent authority, particularly where the concern involves an immediate risk to life, safety, or where internal reporting channels are themselves compromised.

**11.2** Where a concern involves suspected fraud or misuse of donor funds, the Foundation shall additionally comply with any reporting obligations owed to the relevant funder under the applicable grant agreement.

## 12. Review of this Policy

**12.1** This Policy shall be reviewed by the Board at least once every two years.

## Schedule A: Whistleblowing Report Form

Use of this form is optional — a report may also be made verbally or in any written format.

Name (optional — reports may be made anonymously): ____________________________________

Role / relationship to the Foundation: ____________________________________

Date of this report: ____________________________________

**Nature of concern (what happened, who was involved, when and where):**

| |
|---|
| |

**Supporting evidence available (documents, witnesses, dates):**

| |
|---|
| |

Preferred means of follow-up contact (if not anonymous): ____________________________________

*Submit to: the Executive Director, the Board Chairperson, or the Vice-Chairperson (if the concern involves the Chairperson).*

# SAFEGUARDING POLICY

OF

# THE JOPETNAH FOUNDATION

**( TJF )**

*Protecting children and vulnerable persons — adopted pursuant to Article 15.3 of the Constitution*

**FINAL VERSION — APPROVED BY THE BOARD OF TRUSTEES**

Kampala, Republic of Uganda · 2026

*This policy operationalizes Article 15.3 of TJF's Constitution and has been reviewed and approved by the Board. It may be amended as TJF's governance needs evolve, particularly to reflect Uganda's Children Act and sector- or donor-specific safeguarding standards as programs launch.*

# Table of Contents

## 1. Purpose

The Jopetnah Foundation ("the Foundation" or "TJF") is committed to protecting the safety, dignity, and wellbeing of every child and vulnerable person who takes part in, or comes into contact with, its programs. This Policy sets out the Foundation's commitments, standards of conduct, and procedures for preventing, identifying, and responding to abuse or exploitation.

## 2. Application

This Policy applies to all Trustees, staff, volunteers, interns, contractors, and to any partner organization or individual delivering activities on the Foundation's behalf. Compliance with this Policy, or an equivalent standard acceptable to the Foundation, shall be a condition of any partnership or sub-grant agreement involving direct contact with children or vulnerable persons.

## 3. Definitions

**(a)** "Child" means any person under the age of eighteen (18) years;

**(b)** "Vulnerable Person" means any person who, because of age, disability, illness, displacement, or other circumstance, may be unable to protect themselves from harm or exploitation;

**(c)** "Abuse" includes physical, sexual, and emotional abuse, neglect, and exploitation, whether occurring in person or facilitated online;

**(d)** "Safeguarding Focal Point" means the individual(s) designated under Article 7 to receive and coordinate the response to safeguarding concerns.

## 4. Guiding Principles

**(a)** the best interests of the child or vulnerable person are the primary consideration in any safeguarding matter;

**(b)** the Foundation maintains a zero-tolerance approach to abuse or exploitation by anyone connected with its work;

**(c)** every concern will be taken seriously, acted upon promptly, and handled with sensitivity and confidentiality;

**(d)** programs are designed and delivered to minimize risk, including through appropriate supervision, consent, and safe environments; and

**(e)** no one connected with the Foundation shall be discouraged or penalized for raising a genuine safeguarding concern.

## 5. Code of Conduct for Interacting with Beneficiaries

All persons covered by this Policy shall:

**(a)** avoid being alone with a child or vulnerable person where this can reasonably be avoided, and ensure one-on-one interactions occur in view of, or within earshot of, other adults;

**(b)** never use language, take photographs, make physical contact, or behave in a manner toward a child or vulnerable person that is inappropriate, threatening, or could reasonably be perceived as such;

**(c)** obtain informed consent from a parent, guardian, or the individual (as age-appropriate) before photographing or filming a beneficiary, and before using their image or story in any communications material;

**(d)** never transport, host, or communicate privately with a beneficiary child outside of Foundation-sanctioned activities without another adult present or express, documented parental/guardian consent;

**(e)** report immediately any behavior by another person connected with the Foundation that raises a safeguarding concern, in accordance with Article 7.

## 6. Safer Recruitment and Vetting

**6.1** All staff, volunteers, and contractors whose role involves direct contact with children or vulnerable persons shall undergo reference checks and, where available in Uganda, a police clearance or equivalent background check, before starting work.

**6.2** Job descriptions and volunteer agreements shall include an explicit safeguarding responsibility, and all new starters shall receive safeguarding induction before commencing beneficiary-facing work.

**6.3** Partner organizations receiving Foundation funds for beneficiary-facing activities shall be required to demonstrate an equivalent safeguarding standard as a condition of the partnership.

# 7. Reporting a Safeguarding Concern

**7.1** The Board shall designate at least one Safeguarding Focal Point, who shall be named and their contact details made known to all staff, volunteers, partners, and, so far as practicable, beneficiaries and their families.

**7.2** Any person who witnesses, suspects, or receives a disclosure of abuse or exploitation involving a Foundation beneficiary, staff member, volunteer, or partner shall report it to the Safeguarding Focal Point without delay, and in any event within twenty-four (24) hours.

**7.3** A report may also be made through the channels set out in the Foundation's Whistleblower Policy, and the two policies shall operate together, with this Policy's procedures taking precedence on matters of immediate child or vulnerable-person safety.

**7.4** No person shall be required to investigate a safeguarding concern themselves, nor to confront the person alleged to be responsible; their responsibility is limited to reporting promptly and accurately.

## 8. Responding to a Disclosure

Any person who receives a disclosure of abuse from a child or vulnerable person shall:

**(a)** listen carefully and take the disclosure seriously, without expressing shock, disbelief, or judgment;

**(b)** not promise confidentiality, and explain, in an age-appropriate way, that the concern must be shared with someone who can help;

**(c)** not ask leading questions or attempt to investigate the matter themselves;

**(d)** record what was said as soon as possible afterward, using the person's own words, without embellishment or interpretation; and

**(e)** report immediately to the Safeguarding Focal Point in accordance with Article 7.

## 9. Investigation and Referral to Authorities

**9.1** The Safeguarding Focal Point shall assess every report promptly and determine whether immediate risk exists requiring urgent action, including referral to the Uganda Police Force Child and Family Protection Unit, the local Probation and Social Welfare Officer, or other statutory child-protection authority.

**9.2** Where the allegation involves a Foundation staff member, volunteer, or Trustee, that person shall be removed from beneficiary-facing duties pending the outcome of the assessment, without prejudice to any final determination.

**9.3** The Foundation shall cooperate fully with any statutory investigation and shall not conduct a parallel internal investigation in a manner that could compromise a criminal investigation.

**9.4** All safeguarding reports and their outcomes shall be documented and retained securely, with access restricted to those with a legitimate need to know, and shall be reported in summary, non-identifying form to the Board at least annually.

## 10. Support for Survivors

**10.1** The Foundation shall ensure that any child or vulnerable person affected by a safeguarding concern is offered access to appropriate medical, psychosocial, or protective services, working with qualified local service providers, and that their ongoing safety is prioritized throughout any process.

## 11. Partner and Third-Party Standards

**11.1** Any organization or individual delivering Foundation-funded activities involving contact with children or vulnerable persons shall be required, as a condition of funding, to adopt and demonstrate a safeguarding standard equivalent to this Policy, and to report any safeguarding concern arising from Foundation-funded work to the Safeguarding Focal Point.

## 12. Training and Awareness

**12.1** All staff, volunteers, and Trustees shall receive safeguarding training upon induction and refresher training at least every two years.

**12.2** The Foundation shall make beneficiaries and their families aware, in an age-appropriate and locally accessible way, of their right to raise a concern and how to do so.

## 13. Review of this Policy

**13.1** This Policy shall be reviewed by the Board at least annually, and sooner if required following any safeguarding incident or material change in law or sector standards.

## Schedule A: Safeguarding Concern Report Form

To be completed as soon as possible after a concern arises or a disclosure is received, and submitted to the Safeguarding Focal Point without delay.

Name of person reporting: ___________________________________

Role / relationship to the Foundation: ___________________________________

Date and time of the incident or disclosure: ___________________________________

Date and time of this report: ___________________________________

**What was seen, heard, or disclosed (use the person's own words where possible; facts only, not opinions or interpretation):**

| |
|---|
| |

Names of any others involved or present (if known): ___________________________________

Immediate action taken, if any: ___________________________________

*Submit immediately to the designated Safeguarding Focal Point. Contact details:*

Safeguarding Focal Point name: ___________________________________

Contact phone / email: ___________________________________